

Calendar Lines 5 & 12

Case Name: *Mesfin Regassa Ayle et al. v. Keith Laverne Booth et al.*

Case No.: 19CV360439

I. BACKGROUND

In this wrongful death action, plaintiff Mesfin Regassa Ayle (“Ayle”) and other members of his family (collectively, “Plaintiffs”) have filed suit against the County of Santa Clara (the “County”), the City of San Jose (“San Jose”), the City of Santa Clara (“Santa Clara”), and Keith Booth (“Booth”) for an accident in which Ayle’s father, Regassa Ayle Walkeba (“Decedent”), was struck and killed by a box truck driven by Booth. This occurred on the Central Expressway near San Jose Airport on December 28, 2018.

Plaintiffs filed their original and still-operative complaint on December 18, 2019, stating six causes of action: (1) Negligence (against Booth, his employer (Pathens, Inc.), and various Does); (2) Negligent Hiring, Training, Supervision and Retention (against Booth’s employer and various Does); (3) Negligent Entrustment (against Booth’s employer and various Does); (4) Dangerous Condition of Public Property (against the County, San Jose, Santa Clara, and various Does); (5) Dangerous Condition of Public Property (against various Does only); and (6) Negligence (against various Does only). There are no exhibits attached to the complaint. Plaintiffs’ allegations against the public entity defendants (the fourth cause of action) are based on Government Code sections 835 and 840.2.

The complaint alleges that Decedent was struck while he was “a pedestrian in or near a crosswalk and refuge island area near the intersection of Central Expressway and De La Cruz Boulevard.” (Complaint, ¶ 23.) The complaint alleges in somewhat conclusory fashion that this location was a dangerous condition of public property to pedestrians as a result of: “a. A misleading, confusing, and/or dangerous configuration; b. A misleading, confusing, and/or dangerous refuge island; c. Lack of an adequate refuge island; d. Lack of any or adequate warning signs; e. Lack of traffic control signals; f. Lack of sufficient marked crosswalks; g. Lack of lighting/illumination or adequate lighting/illumination; h. Lack of adequate sight distance; i. Overabundance of visual distractions; j. Lack of adequate speed limitations; k. Unpredictable traffic gaps; l. Abnormally high traffic density; and/or[] m. Lack of devices to allow for safe pedestrian and traffic movement.” (Complaint, ¶ 25.)

The complaint alleges that Decedent’s “encounter” with the dangerous condition was a proximate cause of Decedent’s injuries. (Complaint, ¶ 25.) The complaint’s first cause of action also alleges that Booth’s negligence was a proximate cause of Decedent’s injuries. (Complaint, ¶ 36.)

The County filed an answer to the complaint on March 6, 2020, Santa Clara filed an answer on March 24, 2020, and San Jose filed an answer on March 30, 2020. Booth and Pathens, Inc. filed a joint answer on May 6, 2020.

Currently before the court are two motions for summary judgment. The first, by the County, was filed on April 8, 2024. The second, by San Jose, was filed on May 2, 2024. Both motions were originally set for hearing on different dates before the court reset them for August 1, 2024. Plaintiffs filed their separate oppositions to these motions one day late, on

July 19, 2024. While plaintiffs have not attempted to make any showing of good cause, the court has exercised its discretion to consider the late oppositions.⁵

II. REQUEST FOR JUDICIAL NOTICE

Defendant San Jose has submitted a request for judicial notice in support of its motion. “Judicial notice may not be taken of any matter unless authorized or required by law.” (Evid. Code, § 450.) A precondition to judicial notice in either its permissive or mandatory forms is that the matter to be noticed be relevant to the material issue before the court. (*Silverado Modjeska Recreation and Park Dist. v. County of Orange* (2011) 197 Cal.App.4th 282, 307 [citing *People v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422, fn. 2].) It is the court, and not the parties, that determines relevance. Evidence Code section 453, subdivision (b), requires a party seeking notice to “[furnish] the court with sufficient information to enable it to take judicial notice of the matter.”

San Jose seeks judicial notice of four documents, submitted as Exhibits A-D to the request, pursuant to “Evidence Code sections 451 and 452.” (See Request, p. 1:27.) No specific basis for taking judicial notice of any of the four documents is identified. (See Evid. Code, § 453, subd. (b).) Exhibit A consists of excerpts for San Jose’s City Charter. Exhibit B is Plaintiffs’ complaint. Exhibit C is San Jose’s answer to the complaint, filed on March 20, 2020. Exhibit D is a copy of section 2.04.4420 of the San Jose Municipal Code.

Despite San Jose’s failure to identify a specific basis for judicial notice, the court grants judicial notice of Exhibits A and D under Evidence Code section 452, subdivision (b), and GRANTS judicial notice of Exhibits B and C under section 452, subdivision (d). The court does not take judicial notice of the truth of any allegations contained in Exhibits B and C.

III. GENERAL LEGAL STANDARDS

A. Summary Judgment

The pleadings limit the issues presented for summary judgment or summary adjudication, and such a motion may not be granted or denied based on issues not raised by the pleadings. (See *Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258; *Nieto v. Blue Shield of Calif. Life & Health Ins.* (2010) 181 Cal.App.4th 60, 73 [“[T]he pleadings determine the scope of relevant issues on a summary judgment motion.”].) “A moving party seeking summary judgment or adjudication is not required to go beyond the allegations of the pleading, with respect to new theories that could have been pled, but for which no motion to amend or supplement the pleading was brought, prior to the hearing on the dispositive motion.” (*Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5th 438, 444 [quoting *Howard v. Omni Hotels Management Corp.* (2012) 203 Cal.App.4th 403, 421]; see also *California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 637, fn. 3 [“Evidence offered

⁵ “A trial court has broad discretion under rule 3.1300(d) of the California Rules of Court to refuse to consider papers served and filed beyond the deadline without a prior court order finding good cause for late submission.” (*Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765.) Code of Civil Procedure section 437c, subdivision (b)(2) “forbids the filing of any opposition papers less than 14 days prior to the scheduled hearing, and case law has sometimes been strict in requiring good cause to be shown before late-filed papers will be accepted” in a summary judgment proceeding. (*Hobson v. Raychem Corp.* (1999) 73 Cal.App.4th 614, 625, disapproved on another ground in *Colmenares v. Braemar Country Club, Inc.* (2003) 29 Cal.4th 1019, 1031, fn. 6.)

on an unpled claim, theory, or defense is irrelevant because it is outside the scope of the pleadings.”].)

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A motion for summary judgment or adjudication shall be granted only if it completely disposes of an entire cause of action, an affirmative defense, a claim for damages, or an “issue of duty.” (See Code Civ. Proc., § 437c, subd. (f)(1); *McClasky v. California State Auto. Ass’n* (2010) 189 Cal.App.4th 947, 975 [“If a cause of action is not shown to be barred in its entirety, no order for summary judgment—or adjudication—can be entered.”].) Summary adjudication of general “issues” or of facts is not permitted. (See *Raghavan v. The Boeing Company* (2005) 133 Cal.App.4th 1120, 1136.)

The moving party’s declarations and evidence will be strictly construed in determining whether they negate or disprove an essential element of a plaintiff’s claim “in order to resolve any evidentiary doubts or ambiguities in plaintiff’s (or opposing party’s) favor.” (*Johnson v. American Standard, Inc.* (2008) 43 Cal.4th 56, 64, parentheses added.) While the same standards of admissibility govern both, the opposition declarations are liberally construed while the moving party’s evidence is strictly scrutinized. (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 768.) The evidence must be liberally construed in support of the opposing party, resolving any doubts in favor of that party. (*Yanowitz v. L’Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1037.)

“A defendant seeking summary judgment must show that at least one element of the plaintiff’s cause of action cannot be established, or that there is a complete defense to the cause of action The burden then shifts to the plaintiff to show there is a triable issue of material fact on that issue.” (*Alex R. Thomas & Co. v. Mutual Service Casualty Ins. Co.* (2002) 98 Cal.App.4th 66, 72; internal citations omitted.) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable finder of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, 25 Cal.4th at p. 850.) “[W]hen the evidence is in equipoise on a matter that a party must establish by a preponderance of the evidence, summary judgment will be granted against that party.” (*Id.* at p. 857, fn. 27.) “A party ““cannot avoid summary judgment by asserting facts based on mere speculation and conjecture, but instead must produce admissible evidence raising a triable issue of fact. [Citation.]’ [Citation.]’ [Citation.]” (*Christina C. v. County of Orange* (2013) 220 Cal.App.4th 1371, 1379 (*Christina C.*); see also *McHenry v. Asylum Entertainment Delaware, LLC* (2020) 46 Cal.App.5th 469, 479 (*McHenry*) [because speculation is not evidence, speculation cannot create a triable issue of material fact].)

B. Dangerous Condition of Public Property

Government Code section 835 “sets out the exclusive conditions under which a public entity is liable for injuries caused by a dangerous condition of public property,” to the exclusion of a general negligence claim. (*Brown v. Poway Unified School Dist.* (1993) 4 Cal.4th 820, 829.) Section 835 provides that a public entity is liable for injury caused by a dangerous condition:

. . . if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous

condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either:

(a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or

(b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.

(Gov. Code, § 835.)

[A] claim alleging a dangerous condition may not rely on generalized allegations but must specify in what manner the condition constituted a dangerous condition. A plaintiff's allegations, and ultimately the evidence, must establish a physical deficiency in the property itself. A dangerous condition exists when public property is physically damaged, deteriorated, or defective in such a way as to foreseeably endanger those using the property itself, or possesses physical characteristics in its design, location, features or relationship to its surroundings that endanger users.

(*Cerna v. City of Oakland* (2008) 161 Cal.App.4th 1340, 1347-1348, internal citations and quotations omitted; see also *Cole v. Town of Los Gatos* (2012) 205 Cal.App.4th 749, 759 ["To establish a qualifying condition, the plaintiff must point to at least one physical characteristic of the property."], internal citations and quotations omitted.)

Regarding notice, "[t]he primary and indispensable element of constructive notice is a showing that the obvious condition existed a sufficient period of time before the accident." (*State v. Superior Court for San Mateo County* (1968) 263 Cal.App.2d 396, 400.) "Whether the dangerous condition was obvious and whether it existed for a sufficient period of time are threshold elements to establish a claim of constructive notice. Where the plaintiff fails to present direct or circumstantial evidence as to either element, his claim is deficient as a matter of law." (*Heskel v. City of San Diego* (2014) 227 Cal.App.4th 313, 317 [internal citation omitted].)

"Ordinarily, the existence of a dangerous condition is a question of fact, but whether there is a dangerous condition may be resolved as a question of law if reasonable minds can come to but one conclusion. It is for the court to determine whether, as a matter of law, a given defect is not dangerous. This is to guarantee that cities do not become insurers against the injuries arising from trivial defects. Moreover, expert opinions on whether a given condition constitutes a dangerous condition of public property are not determinative: The fact that a witness can be found to opine that such a condition constitutes a significant risk and a dangerous condition does not eliminate the court's statutory task pursuant to Gov. Code, § 830.2, of independently evaluating the circumstances." (*Thimon v. City of Newark* (2020) 44 Cal.App.5th 745, 755 (*Thimon*) [internal quotations and citations omitted].)

Government Code section 830.2 expressly permits courts to decide the existence of a "dangerous condition" as a matter of law. That section states: "A condition is not a dangerous condition within the meaning of this chapter if the trial or appellate court, viewing the evidence most favorably to the plaintiff, determines as a matter of law that the risk created by the

condition was of such a minor, trivial or insignificant nature in view of the surrounding circumstances that no reasonable person would conclude that the condition created a substantial risk of injury when such property or adjacent property was used with due care in a manner in which it was reasonably foreseeable that it would be used.” (See also CACI No. 1102.)

The absence of similar accidents at a given location is relevant but not dispositive on the issue of whether it is dangerous. (*Salas v. California Dept. of Transp.* (2011) 198 Cal.App.4th 1058, 1071.) “Property is not ‘dangerous’ within the meaning of the statutory scheme if the property is safe when used with due care and the risk of harm is created only when foreseeable users fail to exercise due care.” (*Brenner v. City of El Cajon* (2003) 113 Cal.App.4th 434, 439.) “A public entity is not required to assume that third parties . . . will act negligently or recklessly.” (*Thimon, supra*, 44 Cal.App.5th at p. 754.)

“Property cannot be ‘public property’ unless owned or controlled by the public entity.” (5 Witkin, *Summary of Cal. Law* (11th ed., 2017) Torts, § 303; see also Gov. Code, § 830, subd. (c) [“‘Property of a public entity’ and ‘public property’ mean real or personal property owned or controlled by the public entity, but do not include easements, encroachments and other property that are located on the property of the public entity but are not owned or controlled by the public entity.”])

Under Government Code section 830.4, “A condition is not a dangerous condition within the meaning of this chapter merely because of the failure to provide regulatory traffic control signals, stop signs, yield right-of-way signs, or speed restriction signs, as described by the Vehicle Code, or distinctive roadway markings as described in Section 21460 of the Vehicle Code.” Government Code section 830.6 states: “Neither a public entity nor a public employee is liable under this chapter for an injury caused by the failure to provide traffic or warning signals, signs, markings or devices described in the Vehicle Code. Nothing in this section exonerates a public entity or public employee from liability for injury proximately caused by such failure if a signal, sign, marking or device (other than one described in Section 830.4) was necessary to warn of a dangerous condition which endangered the safe movement of traffic and which would not be reasonably apparent to, and would not have been anticipated by, a person exercising due care.”

Darkness itself does not constitute a dangerous condition of public property. Several court decisions have held that a public entity has no duty to provide street lighting and cannot be held liable for a failure to do so. (See *Antenor v. City of Los Angeles* (1985) 174 Cal.App.3d 477 (*Antenor*); *Plattner v. City of Riverside* (1999) 69 Cal.App.4th 1441; see also *Mixon v. State* (2012) 207 Cal.App.4th 124, 133-137 (*Mixon*), internal citations omitted [“A public entity is under no duty to light its streets A duty to light, ‘and the consequent liability for failure to do so,’ may arise only if there is ‘some peculiar condition rendering lighting necessary in order to make the streets safe for travel.’ In other words, a prior dangerous condition may require street lighting or other means to lessen the danger but the absence of street lighting is itself not a dangerous condition A public entity, which has no general duty to light its streets, cannot be held liable for failing to provide a consistent level of lighting between one street and the next Absent a duty to eliminate darkness—which, as discussed above, a public entity does not have—diminished visibility that comes with nightfall is not evidence of a dangerous condition subjecting a public entity to liability.”])

As noted above, the complaint alleges that Booth's negligence was a proximate cause of Decedent's injuries. As a general matter, such allegations against a co-defendant may intersect with the allegations against the public entity defendants:

The fact that [a third party's] negligence was a proximate cause of [plaintiff's] injury does not preclude a finding of dangerous condition. "[I]f a condition of public property 'creates a substantial risk of injury even when the property is used with due care' [citation], a public entity 'gains no immunity from liability simply because, in a particular case, the dangerous condition of its property combines with a third party's negligent conduct to inflict injury.' "

(Cordova, supra, 61 Cal.4th at p. 1105, 190 Cal.Rptr.3d 850, 353 P.3d 773.)

When a third party's conduct is the immediate cause of a plaintiff's harm, the question becomes whether the dangerous condition "increased or intensified" the risk of injury from the third party's conduct. (Zelig v. County of Los Angeles (2002) 27 Cal.4th 1112, 1137, 119 Cal.Rptr.2d 709, 45 P.3d 1171; Cerna v. City of Oakland (2008) 161 Cal.App.4th 1340, 1348, 75 Cal.Rptr.3d 168.)

(Thimon, supra, 44 Cal.App.5th at p. 754 [emphasis added]; see also Thimon, supra, 44 Cal.App.5th at p. 759 ["Given that [the third party's] negligence was a proximate cause of [plaintiff's] injuries, [plaintiff must also explain how [defendant public entity's] painting of lines to demarcate the crosswalk along with installing signs warning motorists of the pedestrian crossing 'increased or intensified' the risk of injury to pedestrians crossing at that location. There is no evidence that these improvements did so."].)

IV. THE COUNTY'S MOTION FOR SUMMARY JUDGMENT

A. The Basis for the County's Motion

As noted above, the only cause of action alleged against the County is the fourth cause of action for dangerous condition of public property. The County moves for summary judgment on the basis that: (1) Plaintiffs cannot establish that any physical condition of the property proximately caused Decedent's injuries; (2) Plaintiffs cannot establish the existence of a dangerous condition of public property at all; and (3) the County would be entitled to design immunity even if a dangerous condition were found to exist. (See Notice of Motion.)⁶

The County's motion is supported by seven declarations from the following witnesses: (1) Jim Weston, Division Manager, Records, in the Office of the Clerk of the Board of Supervisors for the County, who authenticates certain County records (Exhibits 19-22); (2) Raymond Boales, a police officer with the City of Santa Clara Police Department ("SCPD"), who described his observations of the scene on the night of the accident and authenticates photographs taken by SCPD personnel (submitted as Exhibit 2); (3) Steve Sandbank, a regional manager and custodian of records for National Data & Surveying Systems, who authenticates November 2019 traffic volume counts for a location "on Central Expressway between its intersections with Scott Boulevard and Lafayette Street" (Exhibit 18); (4) Tony Layton, another SCPD officer, who describes his observations of the scene on the night of the accident and his preparation of a factual diagram of the accident collision scene (Exhibit 1); (5) Roberto

⁶ The County labels these grounds "issues" but it has not moved for summary adjudication, making this designation irrelevant.

Salinas, a civil engineer with the County's Roads & Airports Department, who attests to the County's ownership and control of the Central Expressway on December 28, 2018, and who describes the layout and features of the location at that time, authenticating photographs and County records (Exhibits 3, 4, 17, 23, and 24); (6) Eric Rossetter, Ph.D., P.E., a mechanical engineer retained by the County as an expert witness, who describes his conclusions; and (7) Deputy County Counsel Steve Schmid ("Schmid Decl."), who authenticates Exhibits 5-16.

It is undisputed that, contrary to the allegation in paragraph 23 of the complaint (which states that Decedent was "in or near a crosswalk and refuge island near the intersection of Central Expressway and De La Cruz Boulevard"), the collision between Decedent and the truck driven by Booth actually took place in the westbound merge lane of the Central Expressway, more than 200 feet west of the intersection with De La Cruz Boulevard. It is also undisputed that the Central Expressway was owned and controlled by the County, not San Jose, on December 18, 2018. (See the County's Separate Statement of Undisputed Material Facts, Nos. 8 and 18.)⁷

B. Analysis of the County's Motion

A defendant may obtain summary judgment by demonstrating that a "plaintiff does not possess, and cannot reasonably obtain, needed evidence" to establish an essential element of the causes of action, such as causation. (*Aguilar, supra*, at pp. 854-855.) "Such evidence may consist of the deposition testimony of the plaintiff's witnesses, the plaintiff's factually devoid discovery responses, or admissions by the plaintiff in deposition or in response to requests for admission that he or she has not discovered anything that supports an essential element of the cause of action." (*Lona v. Citibank, N.A.* (2011) 202 Cal.App.4th 89, 110 [citing *Aguilar* among others]; see also *Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1102-1103.)

The County argues that Plaintiffs cannot establish how Decedent arrived at the location where the collision occurred, from what direction he initially approached, or even the number of times he moved through the area before the collision, as there are no witnesses to his pre-collision movements. The occupants of the truck that struck him—Booth (the driver) and Fernando Garcia (the passenger)—both testified that they did not see Decedent until the collision occurred, and they did not know where he came from. (See Schmid Decl., Exhibits 7 and 10.) Both testified that Decedent came from their "left" side immediately before the collision. Thus, the County asserts that even if Plaintiffs could establish that the Central Expressway-De La Cruz Boulevard intersection constituted a dangerous condition of public property, they cannot identify any "causal link" between that intersection and the collision with Decedent. The County submits that this case is analogous to *Padilla v. Rodas* (2008) 160 Cal.App.4th 742, 752-753, which determined that because an allegedly defective gate was just one of multiple, equally likely access points to a swimming pool in which a child drowned, there was insufficient evidence to show a causal link between that defective gate and the drowning. Causation was a matter of "pure speculation or conjecture, or the probabilities [were] at best evenly balanced." (*Id.* at p. 752 [quoting Prosser & Keeton, Torts (5th ed. 1984) § 41, p. 269].) Here, to establish the County's liability under the fourth cause of action,

⁷ The County asserts the location of the collision was "no less than 256 feet" from the west edge of the intersection, while Plaintiffs assert it was "approximately 200 feet west," based on a "guess" from Booth at his deposition. This is not a material dispute of fact.

Plaintiffs must establish all of the elements of Government Code section 835, including that Decedent's "injury was proximately caused by the dangerous condition."

The County has submitted excerpts from the May 23, 2023 deposition testimony of plaintiff Mesfin Regassa Ayle, Decedent's son. (See Schmid Decl., Exhibit 8.) Ayle testified that he did not know why Decedent was at the accident location at 8:00 p.m., did not know how Decedent came to be at that location, and did not know where he was going. Ayle also testified that he did not know what Decedent had been doing since leaving Ayle's house nine hours earlier that day. When asked if he knew of "any witness who could account for Dad's activities during the ten minutes leading up to the accident," he answered "no."

The County has also submitted various written discovery responses from Ayle. In Ayle's April 2022 responses and his May 16, 2023 supplemental responses to requests for admission (RFAs), Ayle admitted that he did not know of any eyewitnesses to Decedent's movements within 60 seconds of the accident other than Decedent, Booth, and Garcia, and he admitted that Decedent had left his residence at about 11:00 a.m. on December 28, 2018 and never returned. (See Responses to RFAs Nos. 4 & 35 (Schmid Decl., Exhibits 11-12.) In his April 19, 2022 responses to Form Interrogatory No. 17.1, Ayle stated that he was "currently unaware" of the names of any eyewitnesses with personal knowledge of Decedent's "whereabouts or activities" for the time period after he left Ayle's residence until the accident, other than Booth and Garcia. (See Schmid Decl., Exhibit 13.) In his April 19, 2022 responses to special interrogatories, Ayle similarly stated that he was "currently unaware" of the names of any eyewitnesses with personal knowledge of either the collision or Decedent's movements other than Booth and Garcia, and was "currently unaware" of the names of any other eyewitnesses with personal knowledge of Decedent's "whereabouts or activities" from the time he left Ayle's home until the accident. (See Responses to Interrogatories Nos. 14 & 19, Schmid Decl., Exhibit 14.) In his August 18, 2023 response to the County's first supplemental interrogatory, Ayle stated that he "currently has no later acquired information bearing on answers previously made in response to interrogatories and currently has no changes or additions to make." (See Schmid Decl., Exhibit 15.)

All of these written discovery responses are verified, and this evidence is sufficient to meet the County's initial burden to demonstrate that Plaintiffs do not have, and cannot reasonably obtain, evidence to support the essential element of causation in the fourth cause of action.

With the burden shifted to Plaintiffs, they are unable to raise a triable issue of material fact as to causation. Indeed, Plaintiffs' opposition brief does not even respond to the causation argument; instead, Plaintiffs rely almost entirely on the July 18, 2024 declaration of counsel, Manuel Balam ("Balam Decl."). (See Plaintiffs' Separate Statement, Response to UMFs 4, 7-12, 16-17, 19, and 31.)⁸ The Balam declaration states that "[f]or the collision incident and events immediately before it in the roadway, as far as I and Plaintiffs currently know, there are no other currently known eyewitnesses identified in discovery responses by Plaintiffs, other than driver Keith Booth and Passenger Fernando Garcia; whether there, in fact, are other witnesses remains to be determined as discovery, depositions, and trial preparation continue."

⁸ These responses refer to a "request for judicial notice" by plaintiffs, but none has been filed in opposition to the County's motion. There are also references to the Salinas declaration submitted by the County, but this declaration does not support any inference of causation.

This is insufficient to establish a material issue regarding causation. Speculation as to the existence of other possible witnesses cannot raise a triable issue of material fact, as speculation is not evidence. (See *Christina C.* and *McHenry*, *supra*.)

The Balam declaration also authenticates Plaintiffs' Exhibits A-G. Exhibits A and B are excerpts from the deposition testimony of Booth and Garcia. These excerpts do not raise any triable issue of material fact as to causation. Plaintiffs highlight speculative statements by Booth, that he was "assuming" or "guessing" that Decedent was walking to the shoulder before the collision. (Ex. A, pp. 56:22-57:2 and 57:23-58:1.) In response to follow-up questions, Booth stated that he had no actual memory of Decedent heading to the shoulder, and he did not know where Decedent had been prior to the collision. (Ex. A, pp. 57:3-10 and 58:2-21.) Garcia testified that the "second before" the collision, he saw Decedent coming from his and Booth's left. (Ex. B, p. 10:8-12.) Exhibits C through G, excerpts from the depositions of other third-party witnesses Melsa Workneh, Roberto Salinas, and James Bittner (San Jose's person most knowledgeable), have little if any relevance to the question of whether Plaintiffs currently have, or can reasonably obtain, evidence to support the essential element of causation. They do not raise any triable issues of material fact on that point.

Plaintiffs are bound by their complaint on summary judgment. Even if it is assumed that the conclusory allegations in the complaint's fourth cause of action adequately allege a claim against any of the public entity defendants, the County has demonstrated that Plaintiffs do not have, and cannot reasonably obtain, evidence to show proximate causation of injury. Plaintiffs do not have any evidence establishing: (1) how Decedent arrived at the location of the accident, (2) how long before the accident Decedent arrived at the location where the collision occurred; (3) from which direction Decedent was traveling when he arrived at the location; or (4) how long he may have been moving through the area—including how many times he crossed any of the streets in the vicinity—before the collision occurred.

Similarly, Plaintiffs have no evidence that could establish that Decedent encountered or interacted with any of the allegedly dangerous condition(s) of the Central Expressway-De La Cruz Boulevard intersection. As a result, even if the fourth cause of action could be reasonably construed as adequately alleging a "failure to warn" of a dangerous condition (and the court finds that the conclusory allegations in paragraphs 25d and 62 fail to do so), the same inability to show causation would apply. Moreover, because the complaint admits that the alleged negligence of defendant Booth was a proximate cause of Decedent's injuries, Plaintiffs were required to show through evidence that an identified dangerous condition of public property "increased or intensified" the risk of injury from Booth's conduct. (See *Thimon*, *supra*, 44 Cal.App.5th at p. 754.) Plaintiffs have not done this.

The court therefore GRANTS the County's motion for summary judgment. As the motion is granted based on the established lack of evidence of causation, it is not necessary for the court to address the County's arguments that there was no dangerous condition of public property to begin with, or that design immunity provides a complete defense to any allegedly dangerous condition of public property.

V. SAN JOSE’S MOTION FOR SUMMARY JUDGMENT

A. The Basis for San Jose’s Motion

The fourth cause of action is also the only cause of action in the complaint alleged against San Jose. San Jose moves for summary judgment on the grounds that: (1) it did not own or control the location where Decedent was struck; (2) Plaintiffs cannot establish causation; (3) Plaintiffs cannot establish the existence of a dangerous condition of public property; and (4) Plaintiffs cannot establish that San Jose had actual or constructive notice of any dangerous condition, assuming one existed. (See May 2, 2024 Notice of Motion.)⁹

In addition to the request for judicial notice discussed above, San Jose’s motion is supported by declarations from: (1) Senior Deputy City Attorney Kendra McGee, who authenticates Exhibits A-J to San Jose’s packet of evidence, the contents of which significantly with the County’s previously submitted evidence; (2) Rick Scott, Assistant Director of San Jose’s Department of Transportation, who states that San Jose has no record of any complaints regarding work by San Jose at or near the intersection of Central Expressway and De La Cruz Boulevard from 1999 through December 28, 2018; and (3) Fai Ali, Deputy Director of San Jose’s Airport Department, who authenticates San Jose’s Exhibit K, a copy of a 2001 agreement between the County and San Jose, and states that San Jose has no records of any plans submitted to San Jose by the County under that agreement.

B. Analysis of San Jose’s Motion

The court GRANTS San Jose’s motion for summary judgment, as follows.

San Jose asserts that the location where the collision occurred on the Central Expressway was owned and controlled by the County, based on the declaration of Roberto Salinas submitted in support of the County’s motion (and re-submitted as Exhibit I to the McGee declaration in support of San Jose’s motion). (See San Jose UMF No. 17.) The Salinas declaration is sufficient evidence to meet San Jose’s initial burden to show that the County, and not San Jose, owned and controlled the Central Expressway on December 28, 2018.

Plaintiffs’ opposition disputes that San Jose’s lack of ownership and control relieves it of any liability, based on the decision in *Bonanno v. Central Contra Costa Transit Authority* (2003) 30 Cal.4th 139 (*Bonanno*). (See Opposition, pp. 20:3-21:28.) Contrary to Plaintiffs’ contention, *Bonanno* does not stand for the proposition that multiple public entities can own and control the same physical condition of a public property at the same time. Indeed, the Supreme Court expressly stated that the scope of its review was limited “to the question ‘whether the location of a bus stop may constitute a dangerous condition of public property under [Gov. Code § 830] because bus patrons will be enticed to cross a dangerous crosswalk to reach the bus stop.’” (*Bonanno, supra*, 30 Cal.4th at p. 146.) While it upheld the jury verdict and concluded the location was in a dangerous condition, it stressed: “Our decision here, we emphasize, does not concern the question whether the crosswalk . . . was in fact an unsafe pedestrian route for crossing [the road], or even the broader question whether painted

⁹ While the caption page of the Notice refers to summary adjudication in the alternative, neither the body of the notice nor San Jose’s separate statement make any mention of summary adjudication.

crosswalks at uncontrolled intersections are more dangerous than those at signal-controlled intersections. As the County, which controlled the intersection, settled with plaintiff before trial, our decision does not in any respect address the liability of a city or county for maintenance of an unsafe crosswalk. To be sure, plaintiff introduced evidence—which the jury apparently found persuasive—showing the DeNormandie crossing was more dangerous than that at Morello, in order to establish that CCCTA should have moved its bus stop to Morello. But the sufficiency of that evidence is not before this court. Our order limiting review, quoted earlier in this opinion, assumes the existence of a dangerous crosswalk, posing only the question whether a *bus stop* may be deemed dangerous because bus users, to reach the stop, must cross at that dangerous crosswalk.” (*Id.* at pp. 146-147, italics in original.) Thus, *Bonanno* assumed the existence of a dangerous condition on property owned/controlled by one public entity defendant and concluded another adjacent property (the bus stop), owned by a different public entity defendant, could be found dangerous based solely on its placement next to the assumed dangerous condition. This is completely distinguishable from the present scenario. In addition, *Bonanno* does not change the general rule that a public entity can only be found liable for a dangerous condition of public property that it in fact owns or controls. For there to be liability for a dangerous condition of public property, “the public entity must own or control the public property at issue at the time of the injury.” (*Goddard v. Department of Fish & Wildlife* (2015) 243 Cal.App.4th 350, 366 [citing *Longfellow v. County of San Luis Obispo* (1983) 144 Cal.App.3d 379, 383].)

In disputing San Jose’s UMF No. 17, Plaintiffs rely solely on the deposition testimony of James Bittner (and exhibits from that deposition), as well as Exhibit K to the declaration of Fai Ali submitted by San Jose.¹⁰ The deposition testimony of Mr. Bittner, discussing projects in the area several years before the accident and the location of San Jose’s jurisdictional line, is not evidence that San Jose owned or controlled either the Central/De La Cruz intersection or the actual accident location on Central Expressway 200 feet to the west on December 28, 2018.¹¹ Exhibit K, a copy of a 2001 agreement between San Jose and the County concerning improvements to portions of Central Expressway and De La Cruz Boulevard, also does not raise any material issues of fact as to any ownership and control of Central Expressway on December 28, 2018. The fact that San Jose participated in projects with the County in the general area where the accident occurred years prior to the accident does not speak to the question of ownership or control.

Finally, even if Plaintiffs could raise a triable issue as to San Jose’s ownership or control of the relevant property, San Jose is still entitled to summary judgment on the same basis as the County: Plaintiffs cannot establish a material fact as to causation.

Like the County’s argument, San Jose’s argument regarding causation is also based on Ayle’s verified discovery responses. (See San Jose UMFs nos. 14-16.) This evidence is sufficient to meet San Jose’s initial burden of showing that Plaintiffs do not have, and cannot reasonably obtain, evidence that any alleged condition of the property at issue proximately caused Decedent’s injuries.

¹⁰ Plaintiffs notably do not dispute several related UMFs, such as nos. 30-38. (See Cal. Rules of Court, rule 3.1350(f)(2) [response in opposing statement “must unequivocally state whether that fact is ‘disputed’ or ‘undisputed.’”].)

¹¹ In fact, when asked if he thought a portion of a pedestrian island located within the jurisdictional boundary line was controlled and owned by San Jose, he responded “I do not believe so.” (See Exhibit F, pp. 90:17-91:6.)

With the burden shifted to Plaintiffs, they are again unable to raise any triable issue of material fact on this point. In disputing San Jose's UMFs 14-16, Plaintiffs rely solely on another declaration from Manuel Balam. This declaration is identical to that submitted in opposition to the County's motion, and it likewise fails to raise any triable issue of material fact as to causation.

San Jose's motion for summary judgment is GRANTED based on San Jose's lack of ownership and control, and based on the absence of any potential evidence of causation. As with the County's motion, it is not necessary for the court to consider San Jose's additional arguments that Plaintiffs cannot establish the existence of a dangerous condition of public property or establish that San Jose had actual or constructive notice of any specific dangerous condition.

C. San Jose's Objections to Evidence

San Jose has submitted evidentiary objections with its reply. These objections are to Plaintiffs' "additional" material facts nos. 3 and 4 in their responding separate statement. These additional facts, and the opposing separate statement more generally, are not themselves evidence. Therefore, the court does not need to rule on these objections. Even if the objections were to the evidence submitted in support of the additional facts rather than the additional facts themselves it would still not be necessary for the court to rule on them. "In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion. Objections to evidence that are not ruled on for purposes of the motion shall be preserved for appellate review." (Code Civ. Proc. § 437c, subd. (q).)¹²

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¹² For the same reasons, the court does not need to rule on the County's objections to evidence, submitted with its reply.

Calendar Line 9

Case Name: *Jerry Ivy, Jr. v. Jerry Ivy, Sr. et al.*

Case No.: 20CV373696

Defendants move to seal financial information contained in papers submitted by both sides in connection with defendants' motion for leave to amend their answer, which the court granted on April 25, 2024. Notice is proper for this motion to seal, and plaintiff has not filed any opposition.

The court finds that there exists an overriding privacy interest in the parties' financial information that overcomes the right of public access to this information, that the overriding interest supports sealing the documents reflecting this information, that a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed, that the proposed sealing is narrowly tailored with targeted redactions, and that no less restrictive means exist to achieve the overriding interest. Public access to the documents that have been conditionally lodged under seal will remain restricted until further order of the court.

IT IS SO ORDERED.

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